

complaint

Mr M is unhappy about Royal Sun Alliance Insurance Plc's (RSA) decision to decline a claim under his home insurance for damage to the roof of a bay window.

background

Mr M claimed on his home insurance policy held with RSA after the roof of a bay window on his home was damaged during a storm.

RSA declined his claim. It said the damage had been caused by wear and tear, and his policy did not provide insurance cover for that. It said the weather conditions at the time simply highlighted the damage that had already been caused over a period of time by the gradual deterioration of the roof's materials.

Mr M complained to RSA, saying that a storm caused the damage and his claim should be paid.

In RSA's final response letter, it said it assessed Mr M's claim to decide if a storm was responsible for the damage by using a formula which asked three questions of the circumstances of the claim. And it had decided that the roof materials had suffered a natural breakdown over time, so Mr M's claim was excluded in his policy. It didn't uphold Mr M's complaint, or accept his claim for storm damage.

Mr M complained to us. An investigator agreed with RSA that the damage was mainly caused by wear and tear – a cause not covered by Mr M's policy – and concluded that RSA had acted fairly in declining his claim. He didn't uphold Mr M's complaint.

Mr M didn't agree with the investigator, so his complaint has been passed to me.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. I agree with the investigator, and for broadly the same reasons. I will explain why.

Our approach to a complaint about a declined claim for storm damage is to consider three questions. These questions are also widely used by home insurance companies for assessing storm damage claims, including RSA for Mr M's claim.

The three questions are:

- 1) were there storm conditions on or around the date the damage occurred?
- 2) is the damage consistent with storm damage?
- 3) is the storm the main cause of the damage?

We use this approach to help us decide if RSA has been fair and reasonable when making its decision.

If the answer to all three questions is 'yes', it's likely that we would ask RSA to pay the claim.

were there storm conditions on or around the date the damage occurred?

RSA is not disputing that storm conditions may have been prevailing around the date of Mr M's loss. I've seen the wind speed peaked at 61 mph on that morning. I'm therefore satisfied that the weather conditions at the time of the loss meet the definition of a storm.

is the damage consistent with storm damage?

There is photographic evidence that an area of roof tiling is missing above the bay window. I think this is damage consistent with the impact storm winds can have.

is the storm the main cause of the damage?

I can understand why Mr M has made a claim on his policy. A storm occurred and his roof was damaged. RSA considered whether the storm was the main cause of the damage.

RSA has said that the damage to the roof of the bay window was consistent with wear and tear, caused gradually over a period of time, and therefore not covered by Mr M's policy. Mr M's home insurance policy says, in the section called "*Policy exclusions*":

"Wear and tear

Any loss, damage, liability cost or expense of any kind directly or indirectly caused by or resulting from wear and tear depreciation, corrosion, rusting, damp, insects, vermin, fungus, condensation, fading, frost or anything that happens gradually..."

RSA said their surveyor reported that the roof tiles on the damaged roof lie under a slurry render which was breaking down and covered in moss. There are a number of photos forming part of the surveyor's report. I can see the accumulated moss and the general appearance of the roof. It does look to me that the appearance of the roof is accurately described by the surveyor. I haven't understood the surveyor's report to be suggesting the presence of slurry render to be unusual or wrongly applied, but that it's present and has deteriorated over a period of time. And that this gradual deterioration has had the effect of damaging the roof.

Once RSA received this report, I don't think it was unfair for it to decline the claim. I think that its decision to use its formula to determine the cause of the damage – comprised of the three questions referred to above and that we also use – was made fairly. And having done so, I don't think it's been unreasonable in considering that the main cause of the roof damage was wear and tear – a cause of storm damage excluded in Mr M's policy.

But Mr M did provide an alternative opinion by a builder that he says show the roof damage was caused by the storm. And that Mr M feels the damage should be paid for by RSA.

I have thought about the builder's opinion and I've considered RSA's surveyor's description of the construction of the roof and how the materials' deterioration over time has caused damage. I have also considered the evidence of RSA's surveyor's photos. The photos show the main roof of the house appears in good condition and undamaged by the storm. If the roof of the bay window had been in a similar condition, it also would have perhaps survived the storm without damage.

I don't think Mr M's builder's report is persuasive enough to outweigh the evidence of the photos and the detailed report from RSA's surveyor on the main cause of damage.

Overall, I'm satisfied that RSA's conclusion that the storm merely highlighted an issue with the roof, rather than causing damage to it, was a fair and reasonable one based on the evidence. And in declining Mr M's claim, it acted fairly.

my final decision

For the reasons above, I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr M to accept or reject my decision before 4 March 2020.

Adrian Bird
ombudsman